

		as “lengthy.” Because the notice is Court-ordered, there is a risk the use of these descriptions could be considered an official endorsement by the Court. 8. Does notice need to be given in any languages other than English? 9. Please include opt-out and workweek dispute forms (but not an objection form) with the notice. 10. If any changes are made to the settlement agreement, please make corresponding changes to the notice. 11. The font size in the actual notice may not be smaller than the font size in the proposed notice provided to the Court.
14	Daniels vs. Lennar Homes of California, Inc 2026-01547354	Sultana S. Kelantan's Motion to Be Relieved as Counsel of Record Case Management Conference Attorney Sultana Kelantan’s motion to be relieved as counsel for Plaintiff Eian Daniels is DENIED WITHOUT PREJUDICE. CRC 3.1362 requires that a motion to be relieved as counsel be filed on Judicial Council form MC-051, supported by a declaration on form MC-052, and accompanied by a proposed order on form MC-053. Counsel has filed only a motion on form MC-051. There is neither a supporting declaration nor a proposed order on the record. The letter and FedEx receipt attached to the motion are inadmissible, as they are not authenticated under penalty of perjury. Attorney Kelantan may refile the motion with proper supporting papers in compliance with the Rules of Court. The Court hereby takes notice that the following case is related to the above-entitled matter: <i>Daniels v. Lennar Homes of California, Inc.</i>, No. 2024-01422730. This case is ordered removed from the inventory of the Honorable William D. Claster in Department CX101 and reassigned to the inventory of the Honorable Craig L. Griffin in Department N17 for all purposes. The Court determines that for purposes of exercising CCP § 170.6 rights, there are two sides to this matter unless the contrary is

		brought to the attention of the Court by ex parte motion. Counsel has 15 days from the date of the enclosed certificate of mailing in which to exercise any rights under CCP § 170.6.
10:00 AM		
15	Sandoval vs. Riverside County CVRI2502556	Defendant's Demurrer to Amended Complaint The Court previously issued a tentative ruling (ROA 370) that proposed overruling Riverside Superior Court’s (RSC) and Does 1-100’s demurrer in its entirety. At the hearing, RSC advanced new arguments about judicial immunity that weren’t fully briefed in the moving papers. The Court continued the hearing on the demurrer and ordered supplemental briefing on judicial immunity. For the reasons set forth below, the demurrer is OVERRULED. However, given the state of judicial immunity case law in California, all parties should be aware that the Court will not consider injunctive relief against RSC or Does 1-100 on the present record, only declaratory relief. Defendant RSC shall file its answer by June 12, 2026. <u>GROUND'S FOR RULING</u> I. <u>Prior Tentative Ruling</u> The Court incorporates the prior tentative ruling by reference. The only live issue for purposes of the present ruling is judicial immunity. II. <u>Judicial Immunity</u> RSC and Does 1-100 (the individual judicial officers of RSC) contend they are immune from suit under California law. “California’s courts have had little to say in published opinions about the reach of judicial immunity.” (<i>Mahler v. Judicial Council of California</i> (2021) 67 Cal.App.5th 82, 109.) Accordingly, California follows the view of the federal courts on the scope of judicial immunity. (<i>Id.</i> , at p. 110.) At the time <i>Mahler</i> was decided,

	federal law—and thus California law—barred “claims for prospective injunctive relief against judicial officials acting in their judicial capacity,” with a limited exception permitting such relief “when a declaratory decree is violated or declaratory relief is unavailable.” (<i>Id.</i>, at p. 109 (quoting <i>Justice Network Inc. v. Craighead County</i> (8th Cir. 2019) 931 F.3d 753, 763).) However, because it was “the universal view of the federal courts . . . that the doctrine of judicial immunity has never foreclosed declaratory relief,” <i>Mahler</i> adopted that holding as well. (<i>Id.</i>, at p. 110.) Under <i>Mahler</i>, then, judicial officers acting in their judicial capacities were immune from suits for damages and suits for prospective injunctive relief (with narrow exceptions), but not from suits for declaratory relief. RSC and Does 1-100 argue the federal law of judicial immunity has since evolved, and suits for declaratory relief are now barred as well. Their argument is based on <i>Whole Woman’s Health v. Jackson</i> (2021) 595 U.S. 30. <i>Whole Woman’s Health</i> was a challenge to Texas’s privately enforced abortion ban. The petitioners sued to enjoin numerous state officials from taking any action to enforce the statute. Relevant here, they named a Texas state court judge and court clerk as defendants. Although only one judge and clerk were named, the petitioners “intend[ed] to seek an order enjoining all state-court clerks from docketing S.B. 8 cases and all state-court judges from hearing them.” (<i>Id.</i>, at p. 39.) The Supreme Court “[a]lmost immediately” identified the flaw in petitioners’ theory: “Generally, States are immune from suit under the terms of the Eleventh Amendment and the doctrine of sovereign immunity.” (<i>Ibid.</i>) And while <i>Ex Parte Young</i> (1908) 209 U.S. 123 recognized a “narrow exception” allowing federal courts to enjoin state executive officials in certain circumstances, “this traditional exception does not normally permit federal courts to issue injunctions against state-court judges or clerks.” (595 U.S. at 39.) As the foregoing makes clear, <i>Whole Women’s Health</i> is about sovereign immunity and the Eleventh Amendment to the United States Constitution, not judicial immunity. The Supreme Court said nothing about whether the judge was immune from suit <i>because he was a judge</i>. Rather, he was immune from suit because the Eleventh Amendment and sovereign immunity barred suit, and the limited <i>Ex Parte Young</i> exception was inapplicable to him. Notably, both <i>Whole Women’s Health</i> and <i>Ex Parte Young</i> hold that issuing an injunction against a state court judge “would be a
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	violation of the whole scheme of our Government.” (<i>Ibid.</i> (quoting <i>Ex Parte Young, supra</i>, 209 U.S. at p. 163).) Of course, the relevant “scheme of our Government” is the federal system. A <i>federal</i> court enjoining or issuing declaratory relief against a <i>state</i> judge is the violation. A <i>state</i> court enjoining or issuing declaratory relief against a judge of <i>that state</i> poses no federalism concerns. In any event, the Eleventh Amendment has no application in state courts, and RSC and Does 1-100 make no argument that sovereign immunity applies. RSC and Does 1-100 also rely on <i>Whole Women’s Health’s</i> holding that “‘no case or controversy’ exists ‘between a judge who adjudicates claims under a statute and a litigant who attacks the constitutionality of the statute.’” (<i>Id.</i>, at p. 40.) Their reliance on this language is misplaced, because it omits important context. In addition to the Eleventh Amendment and sovereign immunity, the Supreme Court found article III of the United States Constitution barred the petitioners’ suit. “Article III of the Constitution affords federal courts the power to resolve only ‘actual controversies arising between adverse litigants.’ [Citation.] . . . Judges exist to resolve controversies about a law’s meaning or its conformance to the Federal and State Constitutions, not to wage battle as contestants in the parties’ litigation.” (<i>Id.</i>, at pp. 39-40.) Absent a live case or controversy, the judicial power of the United States didn’t reach the petitioners’ claims. California law is different. “The California Constitution does not impose the same ‘case-or-controversy’ limit on state courts’ jurisdiction as article III of the United States Constitution does on federal courts.” (<i>Yvanova v. New Century Mortgage Corp.</i> (2016) 62 Cal.4th 919, 936 fn. 11.) Simply put, article III and the case-or-controversy requirement are irrelevant to this case. III. <u>Conclusion</u> For the reasons set forth in the original tentative ruling, and for the reasons set forth above, the demurrer is overruled. However, as <i>Mahler</i> holds, prospective injunctive relief against judges is improper unless (1) a judge has violated a declaratory decree or (2) declaratory relief is unavailable. In this case, no declaratory decree has yet been issued. Nor may Plaintiffs plead that declaratory relief is <i>unavailable</i> when they seek declaratory relief against RSC and Does 1-100. As a result, while the 2AC will move forward against RSC and Does 1-100, declaratory relief against these parties will be the only form of relief available on this record.
1:30 PM	

16	Ortiz vs. Guess? Retail, Inc. 2025-01520347	Defendant's Motion to Compel Arbitration Case Management Conference Defendant Guess? Retail, Inc. moves to compel arbitration of Plaintiff Andres Ortiz Puentes’ individual PAGA claim and to stay proceedings pending completion of arbitration. The motion is DENIED for the reasons set forth below. To the extent the Court discusses the parties’ evidence below, any objections to such evidence are overruled. The Court declines to rule on any objections to evidence not discussed below on the grounds that such evidence is immaterial to the Court’s ruling. GROUND FOR RULING I. Introduction Plaintiff admits that during onboarding in 2024, he signed the arbitration agreement at issue. (Ortiz Decl. ¶ 4; see also Young-Lau Decl. Ex. A.) At the same time, Plaintiff also signed a confidentiality agreement, a social media policy, and a policy and agreement acknowledgment. (Ortiz Decl. Exs. 1-3.) Plaintiff’s sole argument against arbitration is the alleged unconscionability of the arbitration agreement. He doesn’t dispute that the agreement covers the claims at issue here and is governed by the FAA. II. Unconscionability ““The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.’ [Citation.] But they need not be present in the same degree. ‘Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.’” (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114.) A. Procedural Unconscionability
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